Shelby County Tennessee

Willie F. Brooks Jr

Shelby County Register

As evidenced by the instrument number shown below, this document has been recorded as a permanent record in the archives of the Office of the Shelby County Register.

25024354

03/27/2025 - 01:54:10 PM

6 PGS	
ABRIA 2816726 - 25024354	
VALUE	1.00
MORTGAGE TAX	0.00
TRANSFER TAX	0.00
RECORDING FEE	30.00
DP FEE	2.00
REGISTER'S FEE	0.00
TOTAL AMOUNT	32.00

WILLIE F. BROOKS JR
REGISTER OF DEEDS SHELBY COUNTY TENNESSEE

1075 Mullins Station, Suite W165 ~ Memphis, Tennessee 38134 (901) 222-8100
Website: www.register.shelby.tn.us Email: register@shelbycountytn.gov

Prepared By
John Dobbins
5735 MT Moriah RD
Memphis TN 38115
901-921-5300

QUIT CLAIM DEED

(Subject to Existing Mortgage)

THIS QUIT CLAIM DEED (hereinafter referred to as the "Deed") is made and entered into this **23rd day of January, 2025**, by and between:

GRANTORS:
Andrew Chester and Kristen Lee, individuals of legal age, residing at **6245 Old Brownsville Road, Bartlett, Tennessee 38135**, hereinafter collectively referred to as the "Grantors," who are the lawful owners of the real property described herein, and who hereby make this conveyance of their entire right, title, and interest therein.

AND

GRANTEE:
John Dobbins, an individual of legal age, residing at **3422 Tournament Drive, Memphis, TN 38125**, hereinafter referred to as the "Grantee," who is accepting the conveyance of the subject property subject to the terms, conditions, and encumbrances set forth herein.

WITNESSETH:

WHEREAS, the Grantors are the lawful owners in fee simple of the below-described real property and have full power and authority to convey the same;

WHEREAS, the Grantors desire to voluntarily transfer and convey all of their respective rights, titles, and interests in the property to the Grantee by means of this Quit Claim Deed, without warranty of title, covenants, or representations of any kind, express or implied;

WHEREAS, the Grantee acknowledges and accepts such conveyance subject to all existing encumbrances, liens, conditions, and restrictions of record, including but not limited to the existing mortgage as more particularly described herein;

NOW, THEREFORE, in consideration of the sum of **One Dollar ($1.00)** and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged by the Grantors, the Grantors do hereby remise, release, convey, and forever quitclaim unto the Grantee, and to the Grantee's heirs, successors, legal representatives, and assigns, **all of their right, title, interest, claim, and demand**, both at law and in equity, in and to the following described real property, together with all improvements, rights, privileges, easements, hereditaments, and appurtenances thereunto belonging or appertaining, located in **Shelby County, Tennessee**, to wit:

LEGAL DESCRIPTION OF PROPERTY:

All that certain parcel of land known as:

Lot 1, Phase 1, Winding Oaks P.O., as shown on plat of record in Plat Book 180, Page 68, in the Register's Office of Shelby County, Tennessee,

to which plat reference is hereby made for a more particular description of said property, including all rights, ways, easements, improvements, and appurtenances thereto belonging or otherwise appertaining.

SUBJECT TO EXISTING MORTGAGE:

This conveyance is **expressly made subject** to the existing first mortgage encumbering the subject property, which is currently held by:

PennyMac Loan Services, LLC,
P.O. Box 6618,
Springfield, OH 45501-6618.

Said mortgage, executed by the Grantors in favor of PennyMac Loan Services, LLC, its successors and/or assigns, is evidenced by a mortgage instrument dated **[Insert Date of Mortgage]**, and duly recorded in the official records of Shelby County, Tennessee, which secures an outstanding loan obligation in favor of the mortgagee.

GRANTEE'S ACKNOWLEDGMENT AND ACCEPTANCE:

The Grantee, by the acceptance of this Deed, acknowledges, understands, and expressly agrees that:

1. The property is conveyed **subject to the existing mortgage and any unpaid principal balance, interest, late charges, penalties, escrow deficiencies, and any other amounts due under the terms of the said mortgage.**
2. The Grantee **accepts no personal liability** for the repayment of said mortgage obligation; however, the Grantee agrees to:
    - **Indemnify, defend, and hold harmless** the Grantors from any and all claims, demands, suits, liabilities, costs, attorney fees, and obligations arising out of or related to the said mortgage or any foreclosure proceedings thereof.
    - Ensure compliance with the terms of the mortgage agreement, including but not limited to, maintaining required insurance, property taxes, and other related obligations.

3. This Deed is made **without covenants, warranties, or representations** as to the marketability of title, and the Grantors shall not be held liable for any defects in title or encumbrances of record other than those expressly disclosed herein.

COVENANT OF NO WARRANTIES

This Deed is **executed, delivered, and accepted by the Grantee without any warranties**, whether express or implied, as to the **title, encumbrances, condition, value, fitness for a particular purpose, merchantability, or marketability of the property**, except as may be specifically set forth herein.

The Grantors expressly **disclaim any and all warranties**, including but not limited to warranties of **title, possession, quiet enjoyment, and freedom from liens or encumbrances**, whether arising by common law, statutory law, or otherwise.

The Grantee acknowledges that the property is conveyed **"AS IS, WHERE IS,"** and the Grantors make **no representations** as to the condition or suitability of the property for any intended use. The Grantors further convey only such interest in the property **as they may lawfully possess**, and no greater interest, and expressly disclaim any further obligations or liabilities with respect to the property described herein.

The Grantors do hereby **covenant and agree** that they have not made, done, executed, or suffered any act or thing whereby the said premises, or any part thereof, now are, or at any time hereafter shall or may be:

1. **Encumbered or impaired in title or estate;**
2. **Charged with any liens, claims, assessments, or encumbrances, except as specifically disclosed herein;**
3. **Subject to adverse possession, claims, or pending litigation that could affect the marketability or legal title of the property.**

It is understood and agreed that this conveyance is made **subject to all applicable zoning ordinances, restrictive covenants, conditions, rights-of-way, easements, and any recorded instruments affecting the premises, as well as the existing mortgage obligation to PennyMac Loan Services, LLC, its successors and assigns.**

FURTHER ASSURANCES

The Grantors hereby covenant and agree that they shall, at the reasonable request and expense of the Grantee, execute, acknowledge, and deliver any further instruments, documents, or assurances, and take any further actions necessary or desirable to:

1. **Perfect the title to the property in the name of the Grantee;**
2. **Correct any errors or deficiencies in this Deed or any related document;**
3. **Assist in addressing any legal, financial, or regulatory requirements for the property transfer;**
4. **Ensure full compliance with applicable state and local real estate laws governing the transfer of property.**

Such further assurances shall be executed within a reasonable time upon the written request of the Grantee, provided that they do not impose any additional obligations or liabilities upon the Grantors beyond those expressly set forth herein.

IN WITNESS WHEREOF,

The Grantors have hereunto set their hands and seals and executed this Quit Claim Deed on this **23rd day of January, 2025.**

GRANTORS:

Andrew Chester

Kristen Lee

STATE OF TENNESSEE)
COUNTY OF SHELBY)

On this **23rd day of January, 2025**, before me, the undersigned Notary Public in and for said County and State, personally appeared **Andrew Chester and Kristen Lee**, known to me to be the individuals described in and who executed the foregoing Quit Claim Deed, and who acknowledged to me that they executed the same freely and voluntarily for the purposes therein contained.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal.

Notary Public Austin Smith
My Commission Expires: Oct 1st 2028

AUSTIN SMITH
STATE OF TENNESSEE NOTARY PUBLIC
COUNTY OF SHELBY
My Commission Expires Oct. 01, 2028

Address for TAX Correspondence & Payments

PennyMac Loan Services LLC
P.O. Box 6618
Springfield OH 45501-6618

Parcel ID: B0148X D00001
Property Address: 6245 OLD BROWNSVILLE RD

I, or we, hereby swear or affirm that to the best of affiant's knowledge, information, and belief, the actual consideration for this transfer is $ 1.00 .

Affiant
Subscribed and sworn to before me this January 23, 2025

Paul Smith
Notary Public
State of: Georgia
County of: Fulton
My commission expires: March 2, 2028
Return to:
File Z05
Next Gen Holdings
c/o The UPS Store
111. S. Highland #342
Memphis, TN 38111
TITLE NOT SEARCHED

PAUL SMITH
NOTARY
EXPIRES
GEORGIA
MARCH 2, 2028
PUBLIC
FULTON COUNTY